

Executive Engineer Electricity v. Veer Pal

High Court of Judicature at Allahabad · Single Judge · 15 September 2023 · Writ - C No. 30480 of 2023 · **Notices issued; Lok Adalat bill jurisdiction not ousted by clause 6.5; interim relief deferred.**

HEADNOTE

Clause 6.5 of the Electricity Supply Code, 2005, which empowers the Executive Engineer to entertain a complaint about correctness of bills, does not oust the Permanent Lok Adalat's jurisdiction to entertain a billing dispute. The licensees' writ against a Lok Adalat order setting aside a demand of Rs.28,158.33 and directing energization was not decided; notices went to the absent consumer and interim relief was left for 6 October 2023.

FACTUAL SUMMARY

The Executive Engineer (Electricity) and another filed a writ against the Permanent Lok Adalat's order dated 18 May 2023 in P.L.A. Case No. 156 of 2021. That order allowed Veer Pal's complaint, set aside a demand of Rs.28,158.33 raised against him, and directed the licensees to energize his connection. The licensees contended that the complaint was not maintainable, the dispute being about correctness of bills, which Clause 6.5 of the Electricity Supply Code, 2005 entrusts to the Executive Engineer. Veer Pal did not appear.

REUSABLE CONSTRUCTIONS

1. Clause 6.5 of the U.P. Electricity Supply Code, 2005, which permits the Executive Engineer to entertain a complaint about correctness of bills, does not oust the Permanent Lok Adalat's jurisdiction to entertain that billing dispute. ¶ 3-4

HOLDING-UNITS

INTERPLAY · UP-2005::6.5

Permanent Lok Adalat jurisdiction over a bill dispute

HOLDING

The jurisdiction of the Permanent Lok Adalat to entertain a dispute about correctness of an electricity bill is not ousted by Clause 6.5 of the Electricity Supply Code, 2005, under which the Executive Engineer may entertain such a complaint. ¶ 3-4

PRINCIPLE TAGS

pla-bill-dispute-jurisdiction-not-ousted-by-clause-6.5 The licensees said the consumer's complaint was not maintainable before the Permanent Lok Adalat because the dispute concerned bill correctness and Clause 6.5 vests that complaint in the Executive Engineer. The Court held that the Lok Adalat's jurisdiction to entertain a bill dispute is not ousted. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — INTERIM PROTECTION AGAINST THE PERMANENT LOK ADALAT'S SETTING ASIDE OF THE DEMAND OF RS.28,158.33 AND RECOVERY OF THAT SUM

Counsel stated that the reconnection direction would be adhered to. The Court deferred the interim-relief application to the next date. ¶ 5-8

NOT DECIDED — FINAL DISPOSAL OF THE WRIT CHALLENGING THE PERMANENT LOK ADALAT ORDER

Respondent No. 1 was not before the Court. Notices were directed, with steps within a week and a counter affidavit, if advised, within three weeks. Listed on 6 October 2023. ¶ 6-7

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.